

HOUSE No. 2233

The Commonwealth of Massachusetts

PRESENTED BY:

Adam J. Scanlon

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing equitable access to behavioral health services for MassHealth consumers.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>1/6/2025</i>
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>9/23/2025</i>

HOUSE No. 2233

By Representative Scanlon of North Attleborough, a petition (accompanied by bill, House, No. 2233) of Adam J. Scanlon relative to providing equitable access to behavioral health services for MassHealth consumers. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing equitable access to behavioral health services for MassHealth consumers.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12 of chapter 118E of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting after the ninth paragraph the following
3 paragraphs:-

4 The division shall certify and ensure that all contracted accountable care organizations,
5 contracted health insurers, health plans, health maintenance organizations, and behavioral health
6 management firms and third party administrators under contract to a Medicaid managed care
7 organization or primary care clinician plan provide equal access to behavioral health services,
8 benefits and medications of comparable quality in providing medical assistance to recipients.

9 The division shall obtain the approval of the secretary of the executive office of health
10 and human services for all behavioral health services, benefits, and medications, including, but
11 not limited to, policies, protocols, standards, contract specifications, utilization review and
12 utilization management criteria and outcome measurements, used by all contracted accountable

care organizations, contracted insurers, health plans, health maintenance organizations, behavioral health management firms and third party administrators under contract to a Medicaid managed care organization or primary care clinician plan.

Notwithstanding the provision of any general or special law to the contrary, all contracted accountable care organizations, contracted health insurers, health plans, health maintenance organizations and behavioral health management firms and third-party administrators under contract to a Medicaid managed care clinician plan shall submit its method of determining reimbursement levels to all network inpatient mental health and substance use providers and how such methodology is sufficient to meet the costs of providing inpatient care. Such method shall include, but not be limited to, the range of payment amounts including the median payment levels and how such payments are regularly updated. A report including this information shall be submitted to the division and the house and senate committees on ways and means; the committee on health care financing, and the committee on mental health, substance use and recovery no later than 90 days after the effective date of this act.